

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Dane Buchanan	Team: Team # 3	CCRB Case #: 200908482	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/07/2008 11:45 AM	Location of Incident: West 22nd St & 7th Ave and the 10th Precinct	18 Mo. SOL 11/7/2009	Precinct: 10		
Date/Time CV Reported Wed, 05/27/2009 8:59 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/29/2009 5:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Ryan Habermehl	01478	931713	010 PCT
3. POM Michael Servino	31924	926104	010 PCT
4. SGT Vincent Fontana	03556	931673	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Ryan Habermehl	Abuse: PO Ryan Habermehl stopped § 87(2)(b)	A . Exonerated
B . POM Michael Servino	Abuse: PO Michael Servino stopped § 87(2)(b)	B . Exonerated
C . POM Michael Servino	Abuse: PO Michael Servino frisked § 87(2)(b)	C . Exonerated
D . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	D . Officer(s) Unidentified
E . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana did not process § 87(2)(b)'s complaint regarding officers.	E . Unsubstantiated

Synopsis

§ 87(2)(g)

It was received by the CCRB on May 29, 2009 under IAB log number 09-26202. On May 7, 2008 at approximately 11:45 AM, § 87(2)(b) was riding his bicycle while carrying a broken bicycle rim when he stopped at a red light at the intersection of West 22nd Street and 7th Avenue in Manhattan. While he waited for the light to change, two officers in an unmarked taxi cab, identified through investigation as PO Ryan Habermehl and PO Michael Servino of the 10th Precinct, stopped their vehicle and asked § 87(2)(b) where he had gotten the rim from. § 87(2)(b) responded that he had stolen it. The officers then got out of the taxi cab and stopped § 87(2)(b) (Allegations A and B). § 87(2)(b) was then frisked by PO Servino (Allegation C). More officers arrived at the scene, and as § 87(2)(b) was reaching for his ID an unidentified officer stated, “Hurry up and take out you’re fucking ID” (Allegation D). § 87(2)(b) then took the officers to a nearby bicycle shop where the store owner verified that § 87(2)(b) had not stolen the rim. § 87(2)(b) was not summonsed or arrested. § 87(2)(b) then went to the 10th Precinct and spoke to Sergeant Vincent Fontana of the 10th Precinct. § 87(2)(b) asked to file a CCRB complaint against the officers. Sergeant Fontana took down § 87(2)(b)'s information and told him that he would get back to him regarding the complaint but he never did so (Allegation E).

§ 87(2)(g)

It is therefore recommended that allegations A, B and C be *exonerated*. § 87(2)(g)

It is therefore recommended that allegation D be closed as *officer unidentified*. § 87(2)(g)

It is therefore recommended that allegation E be *unsubstantiated*.

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b)-old black male who § 87(2)(b) has black hair and black eyes. He provided a statement when he originally filed his complaint on May 8, 2008 (Encl. 4B – 4C). He provided a telephone statement on June 4, 2009 (Encl. 5A). He was interviewed at the CCRB on June 24, 2009 (Encl. 5B – 5F). A photo array was shown to § 87(2)(b) on December 8, 2009.

§ 87(2)(g)

On May 7, 2008 at approximately 11:45 AM, § 87(2)(b) was riding his bicycle to a bicycle shop to get a broken bicycle rim fixed. § 87(2)(b) stopped at a red light on West 22nd Street and 7th Avenue and, as he waited for the light to change, a yellow taxi cab that was driving on the street perpendicular to him stopped. There were two officers in the cab but § 87(2)(b) did not realize they were officers because they were in plainclothes. These officers were identified through investigation as PO Ryan Habermehl and PO Michael Servino of the 10th Precinct. PO Habermehl, without identifying himself as a police officer, asked § 87(2)(b) where he had gotten the rim in a very nasty tone. § 87(2)(b) did not pay attention to him and, thinking he was just some stranger, defended himself by saying that he had stolen it.

The taxi then made a u-turn and PO Habermehl got out of the car and approached § 87(2)(b) telling him, "Get off the bike, you don't tell that to a cop." That was when § 87(2)(b) realized that the two men were officers. PO Habermehl grabbed § 87(2)(b)'s arm and pulled him off the bike and § 87(2)(b) said, "Get the f off me." PO Habermehl then pulled § 87(2)(b) and the bicycle across the street and stood the bicycle up against a nearby lamppost. PO Servino then frisked § 87(2)(b). PO Servino asked § 87(2)(b) if he had anything in his pockets, to which § 87(2)(b) responded that he did not. PO Habermehl asked § 87(2)(b) if he had a receipt for the bike rim and asked him where he was coming from. § 87(2)(b) told him that he was coming from West 26th Street.

Suddenly, § 87(2)(b) noticed that three or four unidentified officers in uniform had arrived on the scene. One of these unidentified officers was a white male with black hair who was 5'8" tall and stocky. § 87(2)(b) said that this officer was in "riot gear" and indicated that he was wearing a bulletproof vest, a helmet, and also was holding a baton. § 87(2)(b) could not describe the other officers but noticed a marked police van and a marked RMP nearby. PO Habermehl asked § 87(2)(b) for his ID and as § 87(2)(b) was getting his wallet out of his pocket to get the ID, the unidentified white male officer said to him, "Hurry up and take out your fucking ID, we don't have all day." § 87(2)(b) told the officer not to talk to him like that and gave his ID to PO Habermehl. § 87(2)(b) said, "Sir, this problem could be rectified if we just go to the bike shop down the block." § 87(2)(b) then took PO Habermehl to the bicycle shop and asked the bicycle owner if he had bought the rim. PO Habermehl did so and the owner, whose name is Ed, told him that § 87(2)(b) had bought the rim and that it belonged to § 87(2)(b)'s friend. Ed asked PO Habermehl what this was about and PO Habermehl told Ed that § 87(2)(b) had told an officer that he had stolen it. Ed told PO Habermehl that § 87(2)(b) had not. § 87(2)(b) turned to PO Habermehl and said, "I told you I hadn't stolen it." PO Habermehl told § 87(2)(b) that he seemed to fit a description they had, though he did not tell him what the description was. § 87(2)(b) said, "We all fit the description," and then he argued with the officer because he was very upset by what had happened and felt like he was treated like garbage. PO Habermehl walked away in a hurry and seemed like he was embarrassed.

About an hour later § 87(2)(b) went to the 10th Precinct with the intention of filing a complaint. § 87(2)(b) spoke to a sergeant, who was identified through investigation as Sergeant Vincent Fontana of the 10th Precinct, and told him that he wanted to file a CCRB complaint. Sergeant Fontana got angry and said that he was wasting his time and asked him if he had apologized to the officers. Sergeant Fontana asked § 87(2)(b) if he wanted him to take care of it. § 87(2)(b) said the he did and gave the sergeant his name, contact information and the details of the incident. § 87(2)(b) was never given a paper to fill out. Sergeant Fontana wrote something down while § 87(2)(b) was speaking. Sergeant Fontana said that he would get back to § 87(2)(b) but he never did.

§ 87(2)(b) viewed a photo array on December 8, 2009, in order to identify the officer dressed in riot gear who used discourteous language against him. § 87(2)(b) did not identify any officers shown in the array.

Results of Investigation

Identification of Officers Interviewed

A stop and frisk report (Encl. 6A – 6B) was filled out by PO Habermehl for the stop of § 87(2)(b). Therefore he was interviewed. PO Habermehl indicated that PO Servino was his partner and he was therefore interviewed. The roll call also indicated that Sergeant Fontana was the desk sergeant and therefore he was interviewed. § 87(2)(b) viewed a photograph array on October 8, 2009 but was unable to identify the officer who used the discourtesy against him.

Officer Accounts

PO Ryan Habermehl

PO Ryan Habermehl is a § 87(2)(b) -old white male who § 87(2)(b) has brown hair and hazel eyes. At the time of the incident he was assigned to the 10th Precinct but since then he has been promoted to sergeant and is currently assigned to the 108th Precinct.

The stop and frisk report (Encl. 6A – 6B) for the incident that was filled out by PO Habermehl indicated that § 87(2)(b) was stopped at 12:15 PM at the intersection of West 22nd Street and 7th Avenue. He was suspected of criminal possession of stolen property and the reason for this was that he was carrying bicycle parts. It also indicated that PO Habermehl identified himself verbally and by his shield. § 87(2)(b) was frisked due to furtive movements and his refusal to comply with officer's directions. The demeanor of § 87(2)(b) was listed as "verbally combative." The stop and frisk report also indicated that the area has a high incident of the offense under investigation.

PO Habermehl's memo book (Encl. 7A – 7C) indicated that at 12:15 PM he stopped § 87(2)(b) at the intersection of West 22nd Street and 7th Avenue. § 87(2)(b) had been riding a mountain bicycle while carrying a wheel for a BMX bicycle when he was stopped for suspected criminal possession of stolen property. When § 87(2)(b) was asked where he got the wheel from he replied, "I stole it." § 87(2)(b) had a combative temper and kept going into his pockets and would not stand still. These furtive movements led to his being frisked. At 12:20 PM a stop and frisk report was prepared regarding the stop.

PO Ryan Habermehl was interviewed at the CCRB on August 25, 2009 (Encl. 7D – 7E). At the time of the incident he was assigned to the 10th Precinct. On May 7, 2008, he worked, in plainclothes, from 10:30 AM until 7:05 PM. He was assigned to the anti-crime unit with PO Michael Servino. They were assigned an unmarked taxi cab.

On May 7, 2009, PO Habermehl and PO Servino were driving their taxi cab down 7th Avenue when they observed § 87(2)(b) going eastbound on 22nd Street riding a mountain bicycle while holding a BMX bicycle wheel in his hand. At the time of the incident, the 10th Precinct was having a large problem with people stealing bicycles and bicycle parts. PO Habermehl and PO Servino exited the taxi cab and approached § 87(2)(b). They identified themselves as police officers and asked him where he got the wheel from. § 87(2)(b) nastily replied, "I stole it." The officers attempted to ascertain where § 87(2)(b) had gotten the wheel and tried to obtain his ID but § 87(2)(b) was verbally combative. He accused PO Habermehl of being a racist and was screaming and using such words as "fuck" and "shit." § 87(2)(b) repeatedly put his hands into his pockets and would not stand still. The officers ordered him to be still several times but he continued to move around and put his hands into his pockets as if he were reaching for something. Because of this they frisked him. PO Habermehl could not recall who frisked § 87(2)(b) but guessed that it was he that did it since he filled out the stop and frisk report. The frisk determined that he had no weapons on him. § 87(2)(b) eventually told them that he worked for a bicycle shop down the street and that is why he had the wheel with him.

PO Habermehl then took § 87(2)(b) to the bicycle shop where they spoke to the owner. The owner said that § 87(2)(b) did freelance work for him and that is why he had the bicycle wheel. PO Habermehl then explained to both § 87(2)(b) and the bicycle shop owner that the reason why they had stopped § 87(2)(b) was because there were a lot of bike parts being stolen in the area, that § 87(2)(b) was riding a mountain bike while carrying a BMX bike wheel, and that § 87(2)(b) had said that he stole the wheel. PO Habermehl got § 87(2)(b)'s ID and prepared a stop and frisk report. § 87(2)(b) was then allowed to go on his way and the officers left. No other officers assisted in the stop of § 87(2)(b) and PO Habermehl did not recall seeing any officer in riot gear. PO Habermehl never heard any officer say, "Hurry and take out your fucking ID" to § 87(2)(b). The entire incident lasted about five or ten minutes.

PO Michael Servino

PO Michael Servino is a § 87(2)(b) -old white male who § 87(2)(b) has brown eyes and salt and pepper hair.

PO Servino's memo book (Encl. 8A – 8B) indicated that at 12:15 PM he stopped a male at 22nd Street and 7th Avenue for criminal possession of stolen property.

PO Michael Servino was interviewed at the CCRB on September 10, 2009 (Encl. 8C – 8D). He is assigned to the 10th Precinct. On May 7, 2008, he worked, in plainclothes, from 10:30 AM until 7:05 PM. He was assigned to the anti-crime unit with PO Ryan Habermehl. They were assigned an unmarked yellow taxi cab.

On May 7, 2009, PO Habermehl and PO Servino were driving down 7th Avenue when at 22nd Street § 87(2)(b) passed in front of their vehicle. § 87(2)(b) was carrying a bicycle part, although PO Servino could not recall exactly what type of part he had. There was a condition in the 10th Precinct at the time with people stealing bicycles and stripping bicycle parts and the officers believed that § 87(2)(b) had stolen the bicycle part that he was carrying. The officers got out of their vehicle, approached § 87(2)(b) and identified themselves as police officers.

The officers asked § 87(2)(b) what he was doing with the bicycle part and where he had gotten the part from. PO Servino did not remember § 87(2)(b)'s specific response but recalled that he became irate. § 87(2)(b) would not stand still and continuously twisted and turned his body away from them. § 87(2)(b) also belittled and cursed at PO Servino and PO Habermehl and said, "This is bullshit," "Fuck you," and, "You're racists." Because of the way he was acting the officers thought he may have had something to hide and feared for their safety. § 87(2)(b) was frisked, although PO Servino could not recall who frisked § 87(2)(b). He guessed that it was PO Habermehl because he had most of the interaction with § 87(2)(b).

Eventually § 87(2)(b) calmed down slightly and they were able to ascertain that he had been on his way to a nearby bicycle shop. The officers and § 87(2)(b) went to the bicycle shop and spoke to the owner. PO Servino did not remember specifically what the owner said but recalled that the individual either worked at the bicycle shop or was bringing the bicycle part in to be fixed. The officers tried to explain to § 87(2)(b) why they had stopped him but he was still heated and was carrying on. The officers also explained the reason for the stop to the owner, who was trying to calm the individual and was acting as a liaison between him and the officers.

PO Servino stated that if the individual had just told the officers that he was on the way to the bicycle shop he would have not been stopped or frisked and that the situation escalated because of his response. At no time were the officers unprofessional or discourteous. PO Servino did not recall any officer in riot gear or any other officers participating in the stop. No officer told the individual to, "Hurry and take out your fucking ID." The individual never indicated to the officers that he was going to make a complaint. The stop lasted a total of three to four minutes.

Sergeant Vincent Fontana

Sergeant Vincent Fontana is a § 87(2)(b) -old white male who § 87(2)(b) is bald and has blue eyes. Sergeant Fontana was interviewed at the CCRB on September 24, 2009 (Encl. 9C – 9D). He is assigned to the 10th Precinct. On May 7, 2008, he worked, in uniform, from 7:00 AM until 3:57 PM. He was assigned as the desk officer. Sergeant Fontana's memo book (Encl. 9A – 9B) indicated that he was the desk officer on the day of the incident.

On May 7, 2008, Sergeant Fontana was at the desk when § 87(2)(b) who looked annoyed, entered the precinct and wanted an explanation of why he had been stopped by an officer. § 87(2)(b) explained to Sergeant Fontana that he had been stopped by plainclothes officers as he was riding his bicycle while holding a spare bicycle part. The officers drove up to him and asked him if it was his bicycle part

that he was carrying. § 87(2)(b) responded by saying, “No, I stole it.” This led the officers to investigate the situation. § 87(2)(b) said that he had just been joking and that he had been on his way to get the bicycle part fixed. Once the officers concluded that he had not stolen it he was allowed to go on his way. Sergeant Fontana did not recall § 87(2)(b) mentioning anything about a discourtesy.

After § 87(2)(b) told him what had happened, Sergeant Fontana explained to him that he had been stopped because he had told the officers that he had stolen the bicycle part. He also explained that at the time of the incident there was a condition in the precinct of stolen bicycles and bicycle parts. § 87(2)(b) seemed to be happy with the explanation. § 87(2)(b) never requested to file a complaint regarding the incident. Sergeant Fontana did not recall ever taking § 87(2)(b)'s information and never told him that he would get back to him regarding the incident. Sergeant Fontana never asked § 87(2)(b) if he had apologized to the officers. Sergeant Fontana did not recall how long § 87(2)(b) was at the precinct.

NYPD Documents

10th Precinct Command Log

The command log (Encl. 10A – 10C) for May 7, 2008 indicated that Sergeant Fontana was assigned to the desk. There was no indication in the command log of § 87(2)(b) entering the precinct to file a CCRB complaint.

10th Precinct Roll Call

The 10th Precinct roll call (Encl. 11A – 11B) for Tour 2 on May 7, 2008 indicated that Sergeant Fontana was assigned to the desk from 6:55 AM to 3:52 PM. It also indicated that PO Servino and PO Habermehl were assigned to the anti-crime unit and worked from 10:30 AM until 7:05 AM.

Patrol Borough Manhattan South Task Force Roll Call

The Patrol Borough Manhattan South Task Force roll call (Encl. 12A – 12F) for Tour 2 on May 7, 2008 indicated that the following officers who fit § 87(2)(b)'s description were assigned to a detail on May 7, 2008: PO Carlo Krecic, PO Sergio Coppola, PO Paul Reres, PO Peter Ceccarelli, PO Luis Pacheco, PO Keith Rothe, PO John Doherty, PO Mohammad Aryakia, PO John Luongo, PO Gregory Marrero, PO Wilson Vernelly, PO Roy Sullo, PO Francisco Delgado, PO Mark Ligarzewski, PO Luis Perez, PO Michael Galgano PO Terrence Reynolds and PO Bart Gugel.

Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB History – Civilians

§ 87(2)(b) has not filed any other complaints with the CCRB (Encl. 3).

CCRB History – Officers

PO Ryan Habermehl

The CCRB has substantiated no allegations against PO Habermehl in his seven years with the NYPD (Encl. 2A).

PO Michael Servino

The CCRB has substantiated one allegation against PO Servino in his nine years with the NYPD (Encl. 2B). In CCRB case 200600466, an allegation of question and stop was substantiated against PO Servino. He received a command discipline from the NYPD and was penalized with instructions.

Sergeant Vincent Fontana

The CCRB has substantiated two allegations against Sergeant Fontana in his seven years with the NYPD (Encl. 2C – 2D). In CCRB case 200507325, allegations of stop and question and search of person were substantiated. Sergeant Fontana was given Command Discipline A by the NYPD.

Conclusions and Recommendations

Identification of Subject Officers

PO Habermehl and PO Servino were identified as the officers who stopped § 87(2)(b) because PO Habermehl filed a stop and frisk report regarding the incident and because the officers admitted to stopping § 87(2)(b). § 87(2)(b) indicated that PO Servino frisked him. Therefore the frisk allegation is pleaded against PO Servino. § 87(2)(b) alleged that an officer in uniform and “riot gear” participated in the stop and used profanity against § 87(2)(b). § 87(2)(b) described this officer as a stocky, 5’8” tall white male with black hair who was wearing a bullet proof vest, a helmet and a baton. A photo array was conducted using the officers of the Manhattan South Task Force who could have been dressed in such a manner on the date of the incident and who fit the description that § 87(2)(b) provided. § 87(2)(b) did not identify any of these officers as the subject officer. Also, PO Habermehl and PO Servino did not recall any other officers participating in the stop. Because of this the subject officer could not be identified and the allegation of discourtesy is pleaded against, “An officer.” Sergeant Fontana, who was the desk officer, admitted to speaking with § 87(2)(b) while at the stationhouse and therefore the allegation of refusal to file a civilian’s CCRB complaint is pleaded against him.

Undisputed Facts

It is undisputed that PO Habermehl and PO Servino stopped § 87(2)(b). It is also undisputed that § 87(2)(b) said, “I stole it,” in reference to the bicycle part that he was carrying. It is undisputed that § 87(2)(b) was verbally combative. It is also undisputed that § 87(2)(b) was frisked. It is further undisputed that after the incident § 87(2)(b) went to the 10th Precinct and spoke to Sergeant Fontana.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that an officer in “riot gear” told him to hurry up and take out his “fucking” ID. This officer could not be identified by § 87(2)(b) during a photo array and PO Habermehl and PO Servino did not recall any other officers participating in the stop. § 87(2)(g)

§ 87(2)(b) stated that he told Sergeant Fontana that he wanted to file a CCRB complaint against the officers that stopped him. He alleged that Sergeant Fontana took his information and told him that he would get back to him but never did. Sergeant Fontana denied this and stated that § 87(2)(b) only entered the precinct to seek an explanation of why he was stopped. He provided § 87(2)(b) with the

explanation and § 87(2)(b) left the precinct seemingly pleased with the explanation. § 87(2)(g)

Allegation A: PO Ryan Habermehl stopped § 87(2)(b)

Allegation B: PO Michael Servino stopped § 87(2)(b)

Allegation C: PO Michael Servino frisked § 87(2)(b)

At the time of the incident, there was a condition in the 10th Precinct of stolen bicycles and bicycle parts. PO Habermehl and PO Servino saw § 87(2)(b) riding a bicycle while carrying a spare bicycle rim and asked him where he had gotten the rim from. Barry Kamins's New York Search and Seizure indicated that in *People v. DeBour* (Encl. 1A – 1C), officers had the right to conduct a common law inquiry when there is "a founded suspicion that criminal activity was afoot." § 87(2)(g)

Due to these factors, it is recommended that allegations A, B and C be *exonerated*.

Allegation D: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that an officer in uniform and "riot gear" participated in the stop and used profanity against § 87(2)(b). § 87(2)(b) described this officer as a stocky, 5'8" tall white male with black hair who was wearing a bullet proof vest, a helmet and a baton. A photo array was conducted using the officers of the Manhattan South Task Force who could have been dressed in such a manner on the date of the incident and who fit the description that § 87(2)(b) provided. § 87(2)(b) did not identify any of these officers as the subject officer. Also, PO Habermehl and PO Servino did not recall any other officers participating in the stop. § 87(2)(g)

§ 87(2)(b) it is recommended that it be closed as *officer unidentified*.

Allegation E: Sergeant Vincent Fontana did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(b) alleged that he entered the 10th Precinct to file a CCRB complaint while Sergeant Fontana alleged that § 87(2)(b) only sought an explanation of why he was stopped. § 87(2)(g)

It is therefore recommended that allegation E be *unsubstantiated*.

Investigator:
Dane Buchanan
Supervisor:

Date:

Date:

Reviewed by:

Date:

Reviewed by:

Date: